

 Department of Children & Family Services <i>Building a Stronger Louisiana</i>	Division/Section	Family Support
	Chapter No./Name	4-Economic Stability (ES)
	Part No./Name	E-Special Households (FITAP)
	Section No./Name	E-300-FITAP FITAP Special Households (FITAP)
	Document No./Name	E-320-FITAP Third Party Payee
	Effective Date	March 1, 2012

I. STATEMENT OF POLICY

Assign a third party payee when the caretaker relative demonstrates an inability to manage the FITAP benefits.

E-321- * PO ** FITAP WHEN A THIRD PARTY PAYEE IS REQUIRE

Assign a third party payee for the month the caretaker relative is unable to receive FITAP/KCSP benefits due to their death. In this situation, the third party payee must be the person currently caring for the children.

Assign a third party payee when a minor unmarried parent lives in a supportive living arrangement with a legal guardian or adult who is not a qualified relative. See [E-310-FITAP](#), Section * E-316 PO/PR **-FITAP.

E-322-* PO ** FITAP STANDARDS OF SELECTION

The third party payee must:

- not be a member of the OFS staff or a person whose business or personal affairs would create a conflict of interest.
- express an interest in the FITAP family and a willingness to assume the responsibility designated.
- live close enough to the family or have transportation available to allow the family to maintain close contact.
- be reliable.
- have the ability to establish and maintain a positive relationship with the family.

E-323- -* PO ** FITAP LOCATING A THIRD PARTY PAYEE

* There are no policies associated with the procedures. **

E-324- * PO **-FITAP RESPONSIBILITIES OF THE THIRD PARTY PAYEE

* There are no policies associated with the procedures. **

E-325- * PO ** FITAP CONFIDENTIALITY

Release to the third party payee only information pertinent to his responsibility in managing the grant.

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E-326- * PO ** FITAP RESPONSIBILITY OF THE CARETAKER RELATIVE

The caretaker relative's responsibilities are not changed when a third party payee is designated. This includes reporting changes and signing the application form.

II. PROCEDURES

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E-321- PR FITAP WHEN A THIRD PARTY PAYEE IS REQUIRED

There are no procedures associated with this policy.

E-322- PR FITAP STANDARDS OF SELECTION

There are no procedures associated with this policy.

E-323- PR ** FITAP LOCATING A THIRD PARTY PAYEE

When a third party payee is needed:

- contact the client to find out if he knows someone who could be the third party payee.
- if the client makes a recommendation, contact that person to determine if he is willing and meets the standards.
- if the client does not make a recommendation, attempt to locate a suitable person using all available information.
- when a third party payee is selected obtain supervisory approval and complete form 475, Agreement of Third Party Payee.

E-324- * PR ** FITAP RESPONSIBILITIES OF THE THIRD PARTY PAYEE

Explain to the third party payee that:

- he has sole responsibility for managing the grant in the best interest of the family, based on guidance provided by the client.
- he will not be paid for services provided, nor reimbursed for expenses incurred if he exceeds the amount of the payment in meeting the family's expenses.

E-325- * PR ** FITAP CONFIDENTIALITY

There are no procedures associated with this policy.

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E-326- PR FITAP RESPONSIBILITY OF THE CARETAKER RELATIVE

There are no procedures associated with this policy.

III. FORMS AND INSTRUCTIONS

There are no forms associated with this policy.

IV. REFERENCES

Code of Federal Regulations, Title 45, Parts 233.10 and 233.107

LAC 67:III.1227 **